

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

DECISION

Application no. 32118/06
by ASOCIATIA CETATENEASCA PENTRU LICHIDAREA CONSECINTELOR PACTULUI MOLOTOV-RIBBENTROP
against Moldova

The European Court of Human Rights (Fourth Section), sitting on 2 November 2010 as a Chamber composed of:

Nicolas Bratza, *President,*
Lech Garlicki,
David Thór Björgvinsson,
Ján Šikuta,
Mihai Poalelungi,
Nebojša Vučinić,
Vincent Anthony de Gaetano, *judges*
and Fatoş Aracı, *Deputy Section Registrar,*

Having regard to the above application lodged on 14 July 2006,

Having regard to the declaration submitted by the respondent Government on 4 August 2010 requesting the Court to strike the application out of the list of cases and the applicant's reply to that declaration,

Having deliberated, decides as follows:

THE FACTS

The applicant organisation "Asociatia pentru Lichidarea Consecintelor Pactului Molotov-Ribbentrop" is a non-governmental organisation from Moldova. It was represented before the Court by Mr V. Moga, a lawyer practising in Chişinău. The Moldovan Government ("the Government") were represented by their Agent, Mr V. Grosu.

The applicant is an organisation militating for the eradication of the consequences of the Molotov-Ribbentrop treaty concluded between the Soviet Union and Nazi Germany in 1939 according to which, *inter alia*, the present day territory of the Republic of Moldova was annexed by the Soviet Union from Romania.

On 14 November 2005 the applicant organisation applied to the Chişinău Municipal Council for authorisation to hold a peaceful demonstration in the central square of Chişinău on 1 December 2005 and to march from the square to the cemetery of heroes of the Romanian Army to commemorate the eighty-seventh anniversary of the unification of all the Romanian provinces on 1 December 1918.

On 25 November 2005 the Chişinău Municipal Council authorised a demonstration in front of the monument of the victims of political repression which is located in front of the central train station and a march to the cemetery of the heroes of the Romanian Army and back. The Municipal Council did not give reasons for changing the place of the demonstration and march.

On an unspecified date the applicant organisation challenged the decision of the Municipal Council in court and argued, *inter alia*, that it was unlawful for the Municipal Council to change the venue of the planned demonstration and march and that the Municipal Council did not give reasons for doing so.

On 7 December 2005 the Chişinău Court of Appeal dismissed the applicant organisation's actions and found that it was lawful for the Municipal Council to change the venue of a demonstration. The applicant organisation appealed.

On 2 March 2006 the Supreme Court of Justice dismissed the applicant's appeal on the ground that it was lawful for the Municipal Council to change the venue of a demonstration and that the Municipal Council was obliged to give reasons only in cases of refusal to authorise a demonstration.

COMPLAINTS

The applicant organisation submitted that there had been a breach of its rights as guaranteed by Articles 6, 10 and 11 of the Convention in this case.

THE LAW

On 4 August 2010 the Government informed the Court that they proposed to make a unilateral declaration with a view to resolving the issues raised by the application. The Government acknowledged the breach of the

applicant's right guaranteed by Article 11 of the Convention and undertook to pay the applicant the global sum of 3,023 euros (EUR). This sum would be payable within three months from the date of notification of the decision taken by the Court pursuant to Article 37 § 1 of the European Convention on Human Rights. In the event of failure to pay this sum within the said three-month period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period, plus three percentage points. They further requested the Court to strike out the application in accordance with Article 37 of the Convention.

By letter of 17 September 2010 the applicant's representative expressed the view that the Government's unilateral declaration should not be accepted by the Court without allowing him to make comments on the Government's proposal or to explain his position.

The Court notes that Article 37 of the Convention provides that it may at any stage of the proceedings decide to strike an application out of its list of cases where the circumstances lead to one of the conclusions specified under (a), (b) or (c) of paragraph 1 of that Article. Article 37 § 1 (c) enables the Court to strike a case out of its list in particular if:

> "for any other reason established by the Court, it is no longer justified to continue the examination of the application".

Article 37 § 1 *in fine* includes the proviso that:

> "However, the Court shall continue the examination of the application if respect for human rights as defined in the Convention and the Protocols thereto so requires."

The Court also notes that under certain circumstances, it may strike out an application, or part thereof, under Article 37 § 1 (c) of the Convention on the basis of a unilateral declaration by a respondent Government even if the applicant wishes the examination of the case to be continued. To this end, the Court will examine the declaration carefully in the light of the principles emerging from its case-law, in particular the *Tahsin Acar* judgment (see *Tahsin Acar v. Turkey*, [GC], no. 26307/95, §§ 75-77, ECHR 2003-VI, and *Melnic v. Moldova*, no. 6923/03, §§ 22-25, 14 November 2006).

Having regard to the nature of the admissions contained in the Government's unilateral declaration and to the amount of compensation proposed by the Government, which is consistent with the amounts awarded in similar cases (see *Roşca and Others v. Moldova*, nos. 25230/02, 25203/02, 27642/02, 25234/02 and 25235/02, § 49, 27 March 2008; *Russu v. Moldova*, no. 7413/05, § 32, 13 November 2008), the Court considers that it is no longer justified to continue the examination of the application (Article 37 § 1 (c)) (see, for the relevant principles, *Tahsin Acar*, cited above, and *Meriakri v. Moldova* ((striking out), no. 53487/99, 1 March 2005)).

The Court notes that it has specified in a number of cases the nature and extent of the obligations which arise for the respondent State as regards the freedom of assembly (see, amongst many others, *Christian Democratic People's Party v. Moldova (no. 2)*, no. 25196/04, 2 February 2010 and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009) and does not find any compelling reasons to reiterate the findings in those cases in a new judgment.

In so far as the applicant's complaints under Articles 6 and 10 of the Convention are concerned, the Court considers that they do not raise separate issues from those raised under Article 11 and are adequately covered by the Government's admission and the amount of compensation proposed (see *Christian Democratic People's Party v. Moldova*, no. 28793/02, § 79, ECHR 2006-II).

In the light of all the above considerations, the Court is satisfied that respect for human rights as defined in the Convention and the Protocols thereto does not require it to continue the examination of the application (Article 37 § 1 *in fine*).

Accordingly it should be struck out of the list.

For these reasons, the Court unanimously

Takes note of the terms of the respondent Government's declaration and of the modalities for ensuring compliance with the undertakings referred to therein;

Decides to strike the application out of its list of cases in accordance with Article 37 § 1 (c) of the Convention.

Fatoş Aracı
Deputy Registrar

Nicolas Bratza
President